

a period of not less than thirty days during the session of Parliament, and, if either of those Houses of Parliament before the expiration of those thirty days presents an address to His Majesty against the draft or any part thereof, no further proceedings shall be taken thereon, without prejudice to the making of any new draft rules.

Short title and
construction.

8. This Act may be cited as the Superannuation Act, 1909, and shall be read as one with the Superannuation Acts, 1834 to 1892, and those Acts and this Act may be cited together as the Superannuation Acts, 1834 to 1909.

CHAPTER 11.

An Act to amend the Judicature Acts, 1873 to 1894, with respect to the Persons in whom the power of making Rules of Court under those Acts is vested.

[20th October 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment of
provisions as
to rule com-
mittee.

1.—(1) The persons in whom the power of making rules of court under the Judicature Acts, 1873 to 1894, is vested shall include four persons, of whom two shall be practising barristers being members of the General Council of the Bar and two shall be practising solicitors, one such solicitor being a member of the Council of the Law Society and the other being a member of the Law Society and also of a provincial Law Society, to be appointed by the Lord Chancellor for the purpose in the same manner as the four judges referred to in section nineteen of the Supreme Court of Judicature Act, 1881.

44 & 45 Vict.
c. 68.
57 & 58 Vict.
c. 16.

(2) Section four of the Supreme Court of Judicature (Procedure) Act, 1894, is hereby repealed.

Short title.

2. This Act may be cited as the Judicature (Rule Committee) Act, 1909, and may be cited with the Judicature Acts, 1873 to 1894.

CHAPTER 12.

An Act to prohibit Gambling on Loss by Maritime Perils.

[20th October 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) If—

(a) any person effects a contract of marine insurance without having any bonâ fide interest, direct or indirect, either in the safe arrival of the ship in relation to which the contract is made or in the safety or preservation of the subject-matter insured, or a bonâ fide expectation of acquiring such an interest; or

(b) any person in the employment of the owner of a ship, not being a part owner of the ship, effects a contract of marine insurance in relation to the ship, and the contract is made "interest or no interest," or "without further proof of interest than the policy itself," or "without benefit of salvage to the insurer," or subject to any other like term,

Prohibition of
gambling on
loss by mari-
time perils.

the contract shall be deemed to be a contract by way of gambling on loss by maritime perils, and the person effecting it shall be guilty of an offence, and shall be liable, on summary conviction, to imprisonment, with or without hard labour, for a term not exceeding six months or to a fine not exceeding one hundred pounds, and in either case to forfeit to the Crown any money he may receive under the contract.

(2) Any broker or other person through whom, and any insurer with whom, any such contract is effected shall be guilty of an offence and liable on summary conviction to the like penalties if he acted knowing that the contract was by way of gambling on loss by maritime perils within the meaning of this Act.

(3) Proceedings under this Act shall not be instituted without the consent in England of the Attorney-General, in Scotland of the Lord Advocate, and in Ireland of the Attorney-General for Ireland.

(4) Proceedings shall not be instituted under this Act against a person (other than a person in the employment of the owner of the ship in relation to which the contract was made) alleged to have effected a contract by way of gambling on loss by maritime perils until an opportunity has been afforded him of showing that the contract was not such a contract as aforesaid, and any information given by that person for that purpose shall not be admissible in evidence against him in any prosecution under this Act.

(5) If proceedings under this Act are taken against any person (other than a person in the employment of the owner of the ship in relation to which the contract was made) for effecting such a contract, and the contract was made "interest or no interest," or "without further proof of interest than the policy itself," or "without benefit of salvage to the insurer," or subject to any other like term, the contract shall be deemed to be a contract by way of gambling on loss by maritime perils unless the contrary is proved.

(6) For the purpose of giving jurisdiction under this Act, every offence shall be deemed to have been committed either in the place in which the same actually was committed or in any place in which the offender may be.

(7) Any person aggrieved by an order or decision of a court of summary jurisdiction under this Act, may appeal to quarter sessions.

(8) For the purposes of this Act the expression "owner" includes charterer.

(9) Subsection (7) of this section shall not apply to Scotland.

Short title.

2. This Act may be cited as the Marine Insurance (Gambling Policies) Act, 1909, and the Marine Insurance Act, 1906, and this Act may be cited together as the Marine Insurance Acts, 1906 and 1909.

CHAPTER 13.

An Act to provide for the recovery by Local Education Authorities of Costs for Medical Treatment of Children attending Public Elementary Schools in England and Wales. [20th October 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Recovery by local education authority of cost of medical treatment.

7 Edw. 7. c. 43.

1. Where any local education authority provides for the medical treatment of children attending any public elementary school under section thirteen of the Education (Administrative Provisions) Act, 1907, there shall be charged to the parent of every child in respect of any treatment provided for that child such an amount not exceeding the cost of treatment as may be determined by the local education authority, and in the event of payment not being made by the parent it shall be the duty of the authority, unless they are satisfied that the parent is unable by reason of circumstances other than his own default to pay the amount, to require the payment of that amount from that parent, and any such amount may be recovered summarily as a civil debt.

Franchise, &c., to be unaffected by failure of parents to pay.

2. The failure on the part of any parent to pay any amount demanded under this Act in respect of any medical treatment shall not deprive the parent of any franchise, right, or privilege, or subject him to any disability.

No obligation on parent to submit child to treatment.

3. Nothing in this Act shall be construed as imposing any obligation on a parent to submit his child to medical inspection or treatment under section thirteen of the Education (Administrative Provisions) Act, 1907.